

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 18, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	21CV391687	Oswald Campesato vs Jiahua Huang et al	Order Determining Claim of Exemption Parties to appear. Scroll down to 9:01 A.M. Line 1 for Tentative Ruling.
LINE 2	23CV423653	Ampere Computing LLC vs FICT Limited	Application for <i>Pro Hac Vice</i> Counsel <u>I. BACKGROUND</u> On May 27 2026, Plaintiff Ampere Computing LLC filed this unopposed application for Rieko Yamauchi to be admitted as <i>pro hac vice</i> counsel. Upon receiving notice of the motion on May 26, 2026, defense counsel for FICT Limited responded that it would not oppose the application. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). <u>II. LEGAL STANDARD</u> Pursuant to California Rule of Court, rule 9.40(a), for an out-of-state lawyer, not admitted to practice in California may apply for <i>pro hac vice</i> admission. The application must include the following: (1) the applicant must be admitted to practice before a U.S. court, or the highest court of any state or territory; (2) he or she must not be a California resident, nor regularly engaged in practice or other business here; and (3) a member of the California Bar must be associated as attorney of record in the case. A verified application must be filed stating (1) the applicant's residence and office addresses; (2) the court or courts in which he or she is admitted to practice and the dates of admission; (3) that he or she is currently in good standing in such courts; (4) that he or she has not been suspended or disbarred in any court; (5) the title and case number of any California action

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LAW AND MOTION TENTATIVE RULINGS

LINE 2	23CV423653	Ampere Computing LLC vs FICT Limited	in which he or she has applied to appear pro hac vice during the preceding two years, the date of each application, and whether or not it was granted; and (6) the name, address and telephone number of the active member of the State Bar who is attorney of record. (Cal. Rule Court, Rule 9.40(d)—filing fee must accompany application). Copies of the application must be served by mail upon all parties who have appeared in the action, and also upon the State Bar at its San Francisco office at least 16 court days before the hearing under Code of Civil Procedure section 1005. III. <u>ANALYSIS</u> Here, the verified application to admit Rieko Yamauchi, who is a member of New York State Bar complies with Rule of Court, rule 9.40. IV. <u>CONCLUSION</u> Based on the foregoing, the unopposed application for admission of Rieko Yamauchi <i>pro hac vice</i> on behalf of Plaintiff Ampere Computing LLC is GRANTED. The Court executed the proposed order that was attached to the Application.
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9:00 A.M.

Calendar Lines # 2

Case Name Trisha Cardenas et al vs Avalonbay Communities, Inc. et al.

Case No. 24CV450235

Motion to Strike

I. BACKGROUND

On September 9, 2025, Defendants Avalonbay Communities, Inc. et al., filed a motion to strike a portions, punitive damages, of Plaintiff Trisha Cardenas' First Amended Complaint ("FAC"). Defendants aver that the plaintiff fails to plead specific facts alleging "oppression, fraud, or malice" required to support an award of punitive damages under Civil Code section 3294(a). The motion was accompanied by a proof of service indicating electronic service on the same day.

Plaintiff filed its FAC on August 8, 2025. Defendants seeks to strike the punitive and exemplary damages portions alleged on page 12 of the plaintiff's FAC under ¶ 2 (approximately line numbers 21-22) that allege: "For punitive and exemplary damages against all named and DOE Defendants in the statutorily prescribed amounts or amounts to be proved at trial."

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure 436, subdivision (a), the court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code of Civ. Proc., § 436(b)). The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code of Civ. Proc., § 436). The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code of Civ. Proc., § 437). In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63). "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768).

III. ANALYSIS

Defendant meets its burden. Further, no opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to strike the punitive damages portion of the plaintiff's FAC. Specifically, punitive and exemplary damages portions alleged on page 12 of the plaintiff's FAC under ¶ 2 (approximately line numbers 21-22) that allege: "For punitive and exemplary damages against all named and DOE Defendants in the statutorily prescribed amounts or amounts to be proved at trial." The Court will prepare the Order.